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Amid new COVID surge, confusing mix of rules

July 19, 2022 | CALmatters (CA)
Author: Emily Hoeven | Section: Newsletters | 2130 Words
OpenURL Link

Another month, another COVID surge.

As the highly contagious omicron subvariant BA.5 spreads across California and the country — pushing the Golden State's seven-day test positivity rate to 16.7% as of Thursday — all levels of government seem to be sending mixed messages about how we should respond.

Case in point: U.S. Health and Human Services Secretary Xavier Becerra on Friday extended the country's COVID public health emergency order for the tenth time. But on Monday, the U.S. Centers for Disease Control and Prevention ended its COVID monitoring program for cruise ships, noting, "Cruise ships have access to guidance and tools to manage their own COVID-19 mitigation programs. Additionally, cruise travelers have access to recommendations that allow them to make informed decisions about cruise ship travel."

But rarely are COVID recommendations consistent — even within the same state.

Take California, which at the state level has been slowly dismantling its emergency pandemic response and leaving many details to the counties: Although the CDC categorizes 42 of 58 counties as having high levels of COVID community transmission — at which point it recommends universal masking in indoor public spaces — only Los Angeles County appears poised to reinstate an indoor mask mandate, a move it could make as soon as July 29.

In the Bay Area, where wastewater surveys suggest there is more COVID circulating than there was at the height of the winter omicron surge, county health officials told the San Francisco Chronicle they have no plans to bring back restrictions such as mask mandates. Indeed, the mask mandate for riders of BART — the Bay Area's public transit system — expired Monday.

By contrast, masks once again became mandatory Monday at a host of locations, including San Diego Unified schools, UC Irvine and San Diego military bases. Face coverings are also required at UCLA, UC Riverside and Los Angeles film sets, and are a precondition — along with proof of vaccination or a negative COVID test — to attending the massive Comic-Con International convention in San Diego later this week.

Despite California's uptick in positive cases — which is almost certainly an undercount, given how many people don't report at-home test results or don't test at all — and a surge in reinfections and hospitalizations, the threat of serious illness and death appears to have tapered off for most vaccinated and boosted patients.

* One key example: Of the 30 COVID-positive patients currently receiving care at LAC+USC Medical Center in Los Angeles County, just 3 were admitted due to "illness caused by COVID," the hospital said Monday, adding that none are in the ICU and no one has been intubated in several months.

* But, the hospital added, "These facts should not negate the importance of vaccination and other COVID-19 safety measures, nor should they be used to promote baseless political arguments against such measures. … The pandemic is still ongoing and unpredictable."

In other public health news:

* With monkeypox cases on the rise in California and nationally, lawmakers are pushing the federal government to quickly increase the supply of available vaccines. House Speaker Nancy Pelosi, a San Francisco Democrat, said in a Monday letter to Becerra that the California Department of Public Health estimates it needs about 250,000 to

350,000 doses for the highest-risk residents: men and transgender women with two or more male sexual partners. California has received about 19,500 doses and recently placed an order for another 25,000, state public health officials said last week.

* A highly contagious strain of avian flu has hit California — prompting the San Diego Zoo, for the first time in history, to this week start moving almost all of its birds inside. Though the disease is also a potential threat to poultry farms, transmission to people is (thankfully) rare.

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The coronavirus bottom line: As of Thursday, California had 9,677,827 confirmed cases (+0.6% from previous day) and 92,185 deaths (+0.1% from previous day), according to state data now updated just twice a week on Tuesdays and Fridays. CalMatters is also tracking coronavirus hospitalizations by county.

California has administered 78,156,577 vaccine doses, and 71.5% of eligible Californians are fully vaccinated.

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Other Stories You Should Know

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1 Newsom still ensnared in 2024 rumors

It seems that the more vehemently Gov. Gavin Newsom denies he's considering a presidential run in 2024, the more insistently rumors to the contrary swirl. CNBC reported Monday that Newsom is among the high-profile Democrats contacting influential donors who helped raise money for President Joe Biden's 2020 campaign. Although the politicians — including Newsom and Vice President Kamala Harris — did not explicitly ask for support, benefactors said they may be attempting to shore up financial support ahead of a possible presidential run. CNBC also reported that Newsom is among the seven governors set this week to attend a fundraiser for the Democratic Governors Association at the Santa Monica home of Heather Podesta, an influential lobbyist and longtime party fundraiser. As many as 125 people, including big-dollar donors, are expected to be in attendance.

* Nathan Click, a spokesperson for Newsom's reelection campaign, told CNBC: Newsom "regularly participates in DGA fundraisers and believes strongly in helping Democratic governors win across the country."

Another boost to Newsom's potential campaign were the results of an (admittedly unscientific) reader survey conducted by Conor Friedersdorf, a staff writer for The Atlantic. Friedersdorf asked his newsletter subscribers if Biden should seek reelection in 2024; an "overwhelming majority" said no. Among the most frequently mentioned replacements: Newsom and Minnesota Sen. Amy Klobuchar.

In other election news: In a sign that California could play a pivotal role in determining which party secures control of the U.S. House of Representatives in November, five of the six candidates added Monday to the Democratic Congressional Campaign Committee's "Red to Blue" program are running in the Golden State. They'll receive fundraising, organizing and other support from the committee as it seeks to flip GOP-held seats. Californians now account for more than one-fifth of the 33 candidates in the Red to Blue program, according to the Los Angeles Times. A similar program run by the National Republican Congressional Committee, called "Young Guns," is supporting five California House candidates.

2 Gabriel shares details on Israel trip

If all the Newsom speculation seems like much ado about nothing, consider that he "seemed to be on folks' radar" when state lawmakers on a recent trip to Israel discussed U.S. presidential elections with Israeli political leaders — though Newsom wasn't mentioned as frequently in regard to 2024. That was one of the interesting takeaways from

my wide-ranging text conversation Monday with the trip's organizer, Assemblymember Jesse Gabriel, as the Van Nuys Democrat flew with his three children to the East Coast to visit his wife's family. The flight was going smoothly, he wrote, "other than my 2 year old spilling water all over the stranger next to us."

The Israel trip is among a handful of junkets on which state lawmakers have embarked during their month-long summer recess, which ends Aug. 1. These trips are typically funded not by taxpayers, but by special interests that lobby the Legislature. Gabriel shared some key details from the Israel trip, which ran for most attendees from July 5 to July 12 or 13:

* The trip was sponsored by the California Jewish Legislative Caucus Leadership Foundation, a nonprofit affiliated with the Legislature's Jewish caucus, and funded by the Koret Foundation and the Jewish Federation of Greater Los Angeles. Lawmakers were also asked to contribute $1,000 to the caucus' foundation to help cover expenses. Gabriel said he's planning to pay with campaign funds.

* 15 Democratic lawmakers attended: Assemblymembers Gabriel, Buffy Wicks, Isaac Bryan, Evan Low, Robert Rivas, Luz Rivas, Blanca Rubio, Freddie Rodriguez, Matt Haney, Chris Ward and Richard Bloom; and state Sens. Ben Allen, Scott Wiener, Steve Glazer and Susan Rubio. The CEO of the Koret Foundation also joined, and two staff members of the Los Angeles Jewish Federation were there for most of the trip.

* Lawmakers met with Israeli and Palestinian political leaders in Jerusalem, Ramallah and Tel Aviv. The purpose of the trip, Gabriel said, was to "learn about developments in Israel and the region; explore opportunities for partnership on issues of mutual concern such as water, the environment and technological innovation; and help lawmakers better understand the Jewish community and our relationship to Israel." Lawmakers also visited Yad Vashem, Israel's official Holocaust memorial and museum, and met with leaders and activists from the Israeli LGBTQ community.

* Gabriel added: "The Jewish Caucus has been working in recent years to try to put more energy and resources behind the CA-Israel MOU that was signed by Governor Brown a few years ago. We see huge potential benefits to our constituents in CA from stronger partnership and collaboration with Israel and Israeli companies."

One last noteworthy nugget: Gabriel, who's authoring a high-profile bill to force social media companies to be more transparent about their terms of service, told me he plans to attend an upcoming two-day event at a Napa Valley resort and spa. The Technology Policy Summit, sponsored by a foundation affiliated with the Legislature's tech caucus, is an opportunity for tech lobbyists who donate at least $10,000 to the foundation to rub shoulders with lawmakers ahead of critical votes on controversial bills to regulate the industry, as Los Angeles Times editorial writer Laurel Rosenhall reported this weekend. Asked if he is facing pressure from the tech industry or other players to make changes to his bill, Gabriel simply responded, "Yes."

3 A new tool for tenants

With thousands of California households in limbo after statewide pandemic eviction protections expired last month, more than 50 tenant advocates and attorneys are today launching an online tool to help renters facing an eviction notice from their landlord, CalMatters' Manuela Tobias reports. Thousands of California tenants lose their homes every year for failing to file an official response to an eviction notice within five days. The groups say their tool — which they're billing as the first of its kind nationwide — will help tenants buy at least 10 days of time to file an amended response and find a lawyer before the court trial.

* UCLA law professor Gary Blasi, one of the lead housing lawyers behind the tool: "As a lawyer it really pained me to see tenants lose cases just because they couldn't file a piece of paper."

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CalMatters Commentary

CalMatters columnist Dan Walters: Newsom and other Democratic politicians have been highly critical of how red states such as Florida and Texas conduct themselves, but are clearly not above punching holes in California's time-honored sunshine laws.

State bill would push insurers to stop playing doctor: Lawmakers should pass a bill to allow patients to get urgently needed treatments without unnecessary delays from insurance companies, argues Vivian Gonzalez, a Los Angeles public health nurse.

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- **Citation (apa Style)**
  Hoeven, E. (2022, July 19). Amid new COVID surge, confusing mix of rules.*CALmatters (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/18B5EA13453AEDA0.